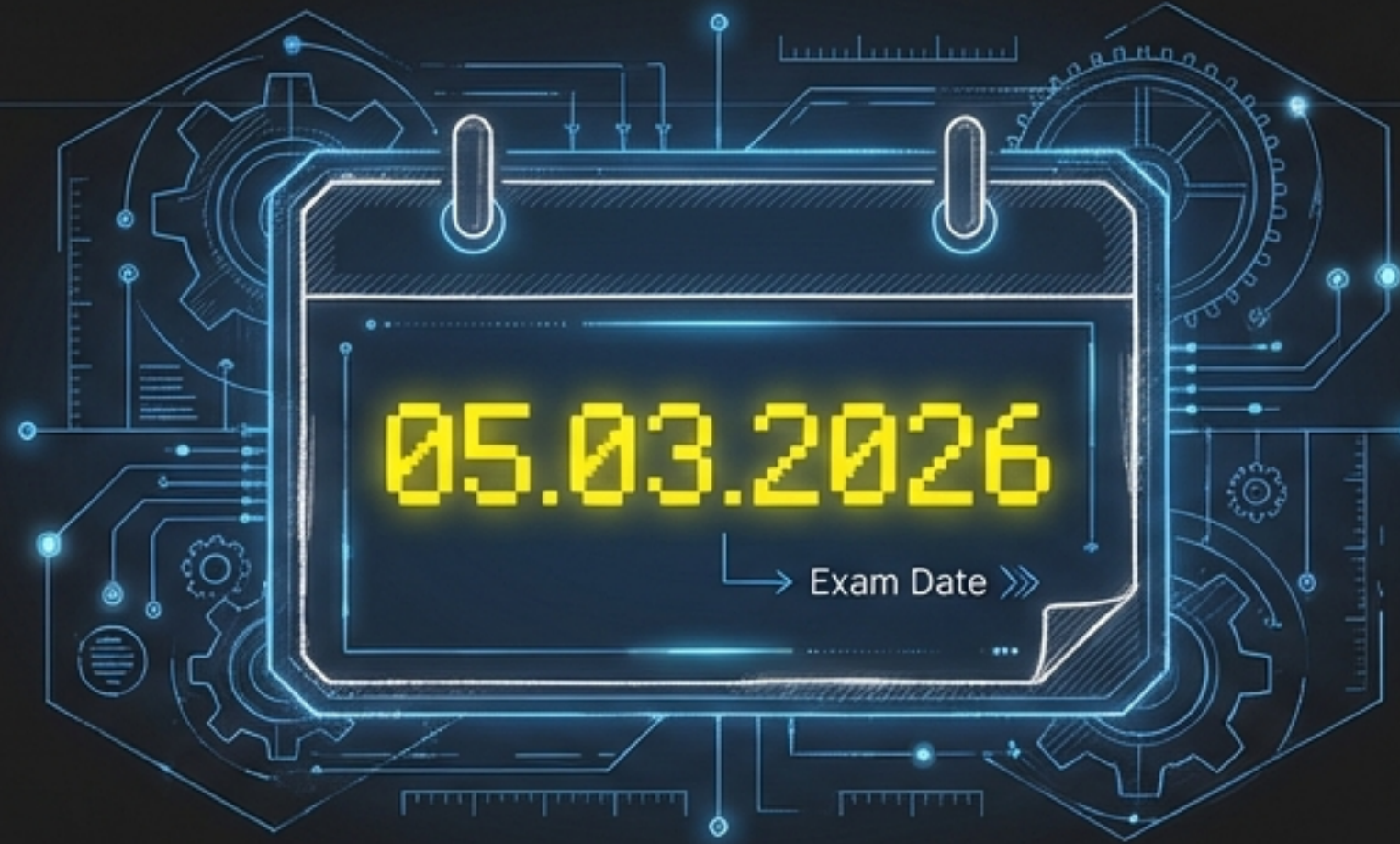




THE ANATOMY OF A DEAL

(Der Kaufvertrag)

The Ultimate Visual Breakdown for the
Business Admin (BW) LZK.



We are the VSN. We built this visual guide to help you crush the upcoming exam. Let's break down the contract, piece by piece.



THE FOUNDATION (Die Basis)

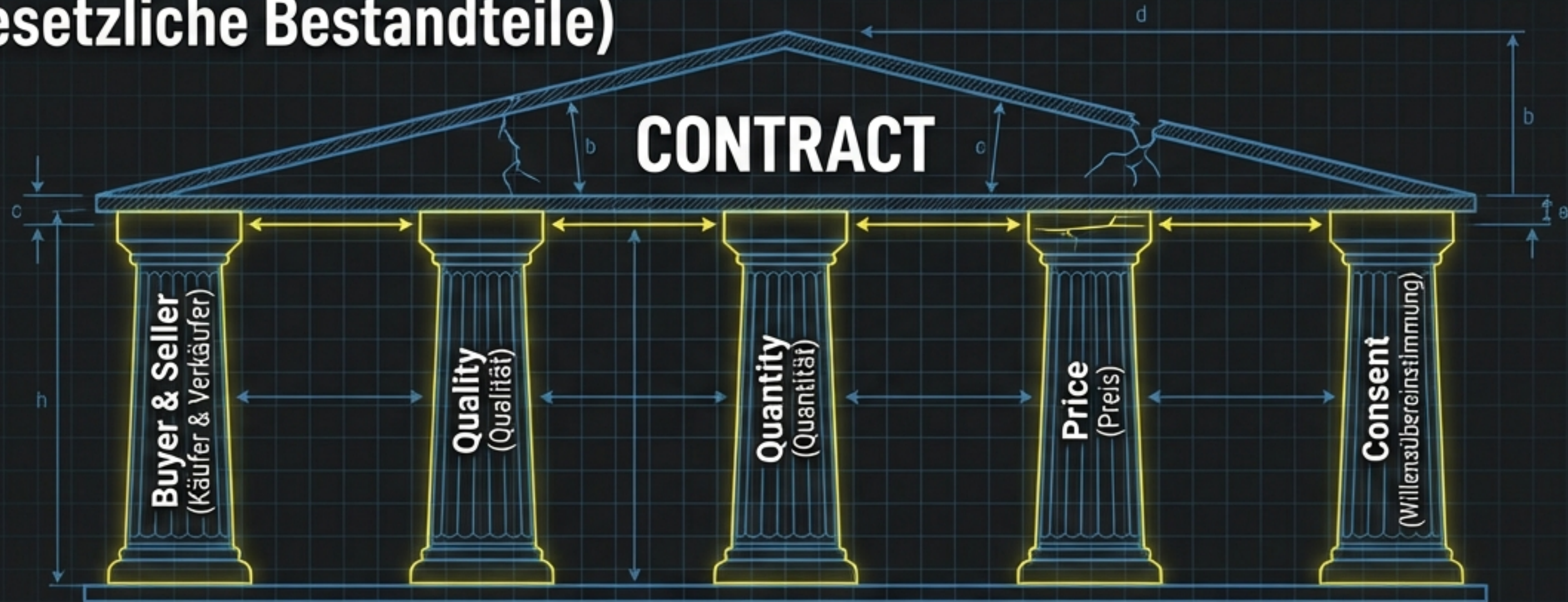
VSN Note: Think of it as a promise. I give you stuff, you give me money. But to make it legal, we need 5 specific ingredients.



Parties involved can be Private Individuals (B2C) or Companies (B2B).

THE 5 STATUTORY ELEMENTS

(Gesetzliche Bestandteile)



For a contract to be legally binding, you **must** agree on these elements. No exceptions.

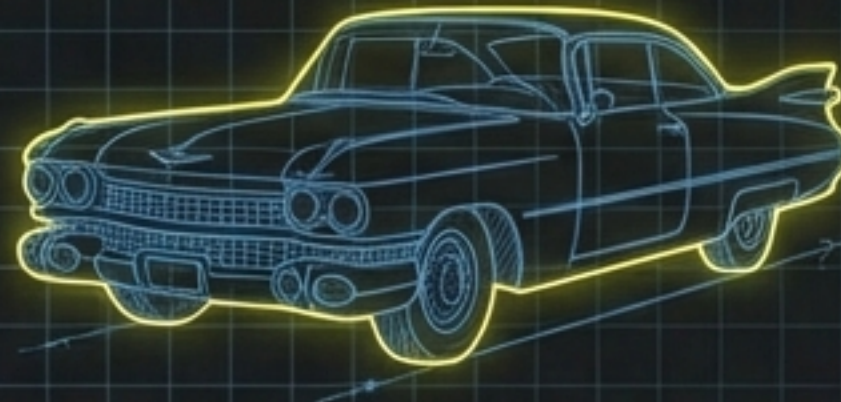
DEFINING QUALITY: THE 'WHAT'

(Qualität)



FUNGIBLE (*Vertretbar*)

Interchangeable. "One of a million."
iPhone 16, DIN A4 Paper, Tiles



NON-FUNGIBLE (*Nicht vertretbar*)

Unique. "One of a kind."
Used car, Real Estate, Original Artwork

VSN Note: If I break your iPhone 16, I can buy you another one (Fungible).
If I crash your vintage car, I can't just replace it (Non-fungible).

HOW TO DETERMINE QUALITY

(Qualitätsfestlegung)



Inspection (*Besichtigung*).
Used for non-fungible goods. 'Bought as seen'.



Samples (*Muster/Proben*).
Sale by Sample (must match) vs
Trial Purchase (small test amount).



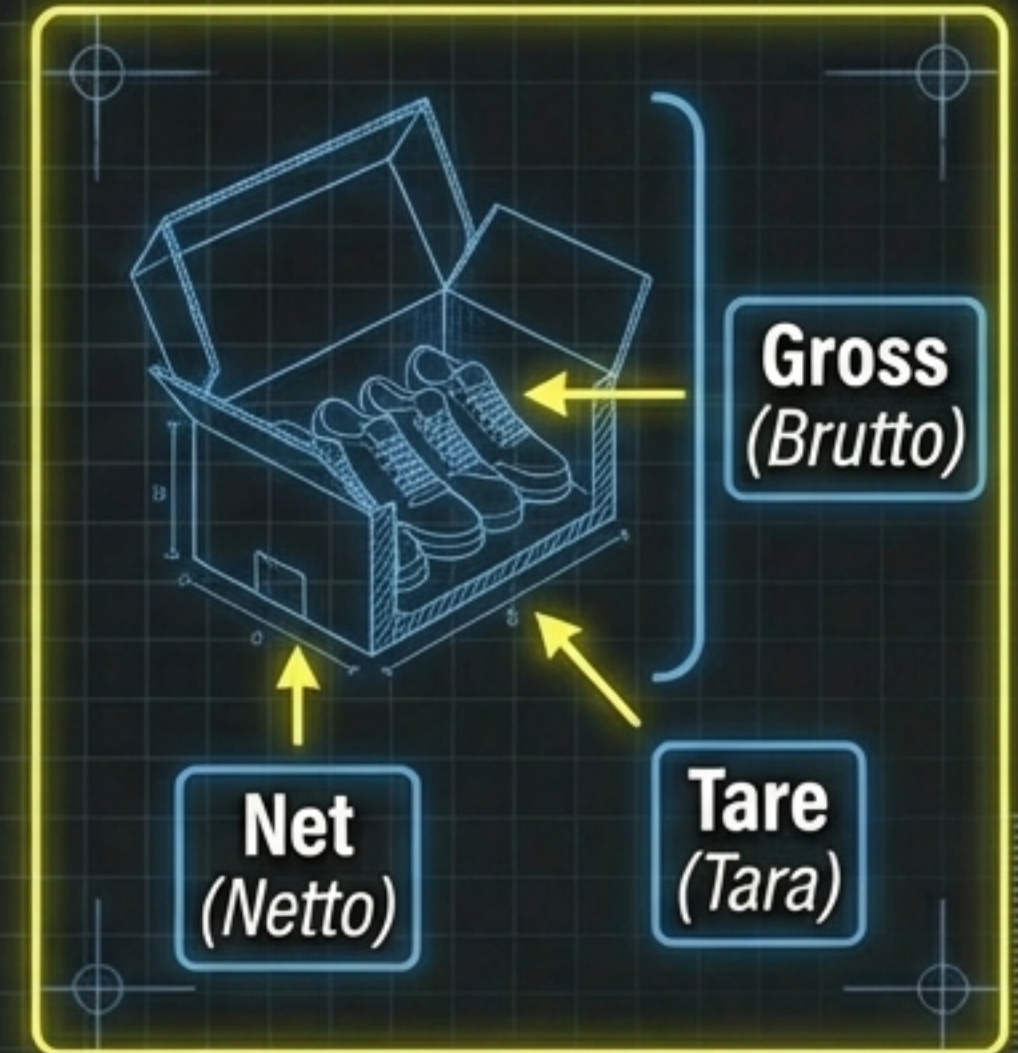
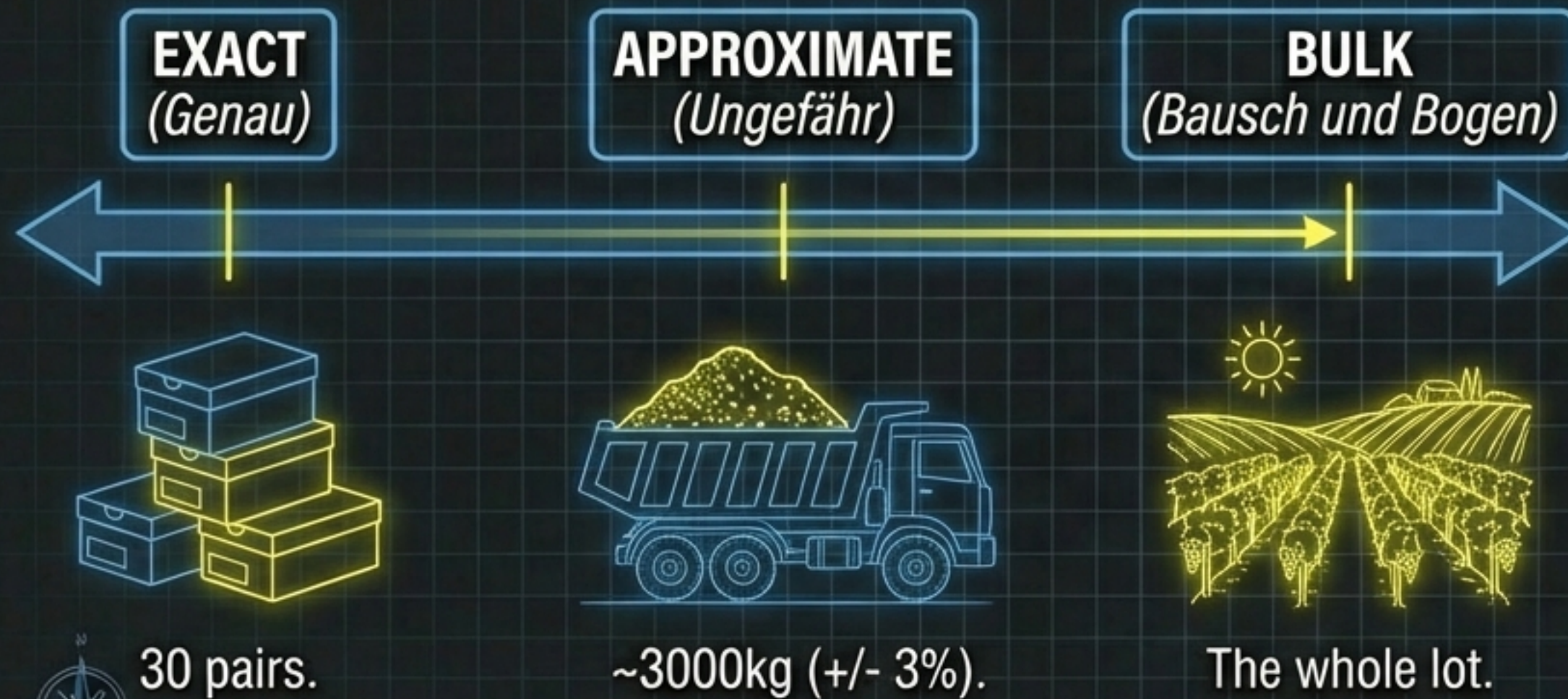
Description/Image (*Beschreibung/Abbildung*).
Standard for online shopping.



Brands & Standards (*Marken/Normen*).
Brands differentiate (Nike vs Adidas).
Standards unify (DIN A4).

DEFINING QUANTITY: THE 'HOW MUCH'

(Quantität)



DEFINING PRICE: THE VALUE

(Preis)

Fixed Price (*Fester Preis*)



Stated precisely.
Example: A pack of gum.

Floating Price (*Freibleibender Preis*)



Used when costs aren't known yet.

- **Market Price** (*Börsenpreis*): Gold, Oil.
- **Index Clause**: Tied to inflation.
- **Base Purchase**: Adjusts on quality.
- **Cost Fluctuation**: Construction costs.

THE MONEY MATH: SKONTO & CALCULATION

List Price (Listeneinkaufspreis)

↓
(-) Discount (Rabatt)

Target Purchase Price

↓
(-) Cash Discount (Skonto)

Cash Purchase Price

↓
(+) Procurement Costs (Bezugskosten)

= Net Purchase Price (Einstandspreis)

VSN Pro Tip

Always take the Skonto! It is an "Early Bird" discount for speed. The interest rate advantage is huge.

****Discount** (Rabatt) is for quantity/loyalty. ***Skonto** is for speed.

DELIVERY: THE WHEN & WHERE (Lieferbedingungen)

Time (Erfüllungszeit)



Prompt (*Promptgeschäft*)
- Immediate.

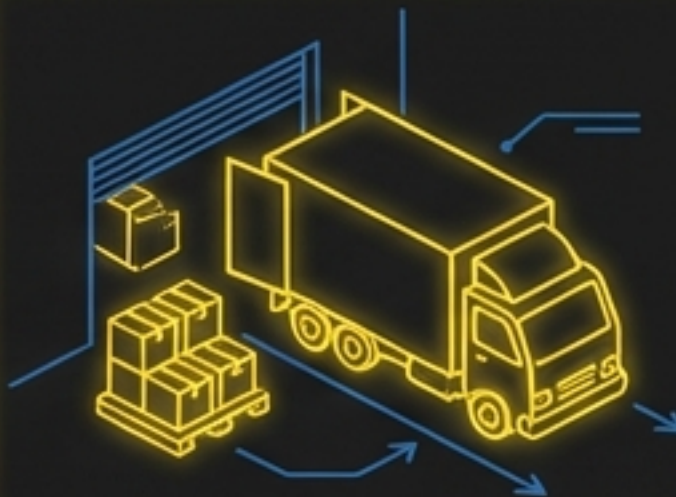


Fixed (*Fixgeschäft*) -
Specific Date.



On Call (*Kauf auf Abruf*) -
When needed.

Place (Erfüllungsort)

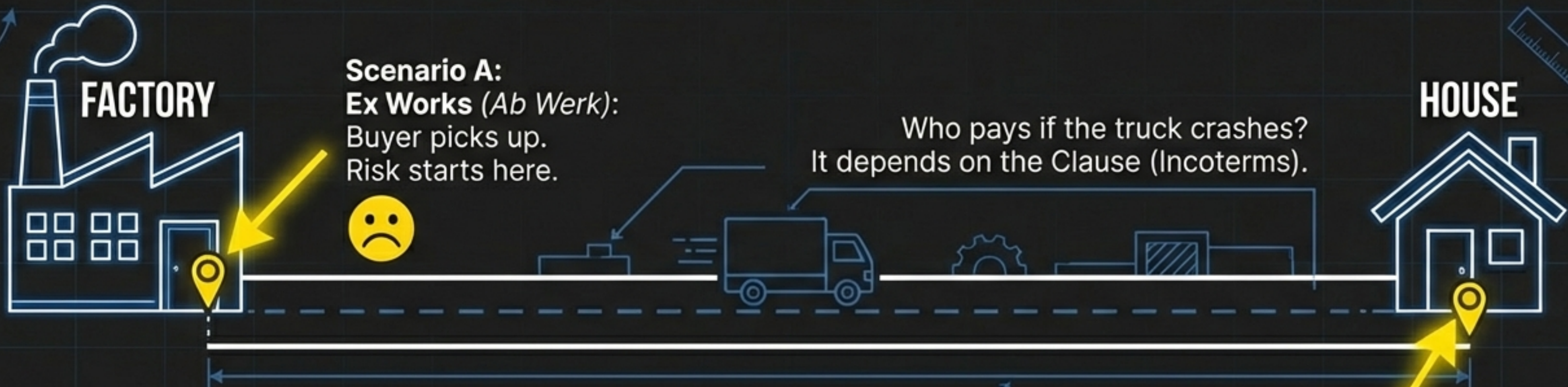


B2B Rule:
Handover to
carrier.

B2C Rule:
Handover to
customer.



THE DANGER ZONE: RISK & COST TRANSFER (Risikoübergang)



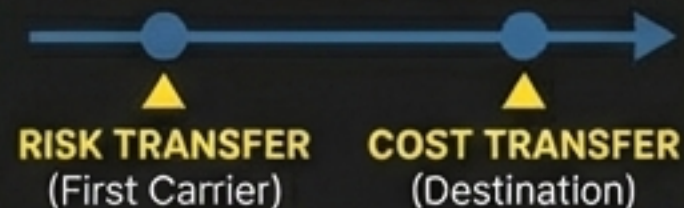
ONE-POINT CLAUSE vs TWO-POINT CLAUSE

One-Point Clause



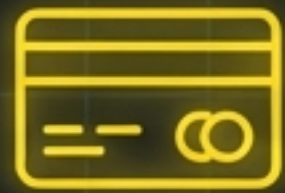
Two-Point Clause

Risk transfers at first carrier,
Cost transfers at destination



PAYMENT TERMS

(Zahlungsbedingungen)



Pre-payment
(Vorauszahlung)
Zero risk for seller.

BEFORE



Prompt / Cash
(Prompte Zahlung)
Cash on delivery.

DURING



Credit Purchase
(Zielkauf)
Pay later. Risk for seller.

AFTER

Warning: Installments (Ratenzahlung)

Watch out! Paying in chunks is often the most expensive way to buy. Check the interest.



COMMERCIAL EXTRAS: THE PROTECTIONS



Ownership Reservation (*Eigentumsvorbehalt*)

You have the bike, but I own it until you pay the last cent.



Penalty (*Pönale*)

If you deliver late, you owe me a fine.



Cancellation Fee (*Stornogebühr*)

You can back out, but it will cost you.

COMMERCIAL EXTRAS: PACKAGING & WARRANTY

Packaging Functions



Protection



Marketing



Information

The Big Mix-Up



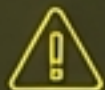
LEGAL LIABILITY
(*Gewährleistung*)

Mandatory by law. The seller must fix defects that were there at handover.



WARRANTY
(*Garantie*)

Voluntary. A promise to fix future issues (e.g., '5 Year Guarantee').



VSN Note: Don't confuse them! Liability is the law; Warranty is a bonus promise.

THE RULEBOOK: **GENERAL TERMS (AGB)**

(Allgemeine Geschäftsbedingungen)



- **What are they?** Pre-written rules for the 'boring stuff' (Delivery, Payment).
- **The Rules:** They cannot be hidden. You must be able to see them *before* you buy.
- **The Protection:** Clauses that are 'grossly disadvantageous' or 'unclear' are invalid.

THE ULTIMATE CHEAT SHEET

Kaufvertrag =



Sales Contract

Vertretbar =

Fungible (Replaceable)

Skonto =

Cash Discount (Speed bonus)

Rabatt =

Discount (Quantity bonus)

Einstandspreis =

Net Purchase Price

Ab Werk =

Ex Works (Buyer takes risk)

Frei Haus =

Free House (Seller keeps risk)

Eigentumsvorbehalt =

Ownership Reservation

Gewährleistung =



Legal Liability (Mandatory)

Garantie =



Warranty (Voluntary)

Good luck on the LZK on 05.03.2026! You got this. - VSN